

Franciscus Dylan Rosario,  
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

v.

Subhi Abdelhalim;  
CSAA Insurance Exchange;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631801**

(Related: CGC-21-594102)

**REQUEST FOR JUDICIAL NOTICE  
(PLAINTIFF-FILED MATERIALS AND  
DEFENSE SEQUENCE);  
EXHIBIT A**

(Evid. Code, § 452(d))

**I. PURPOSE AND SCOPE**

This request has two limited purposes:

1. **Plaintiff's own prior filings in CGC-25-631801.** Plaintiff asks the Court to recognize the **existence** on the court file of opposition papers, requests for judicial notice, exhibit volumes, bench briefs, and related documents plaintiff already filed in this action, for purposes of **incorporation by reference** under California Rules of Court, rule **3.1113**, subdivision **(j)**, and to avoid duplicating voluminous exhibits.
2. **Court records of CGC-21-594102** that plaintiff has **lodged, filed, or cited** in this action or in the operative complaint. Plaintiff requests judicial notice under Evidence Code section **452**, subdivision **(d)** of the **records** of the Superior Court in **CGC-21-594102** (for example, filed motions in limine, orders, and lodged or filed transcript excerpts), **for the existence and**

**content of those court records as records**, not for the truth of every factual assertion recited inside them.

This request **does not** ask the Court to treat any noticed document as a judicial admission that extrinsic fraud occurred. It supplies an **index** that tracks the **sequence and titles** of materials that the **First Amended Complaint** describes in **Section III.D** and related sections.

## II. INCORPORATION BY REFERENCE (CRC 3.1113(J)) — REGISTER PLACEHOLDERS

After plaintiff confirms each document’s **Register of Actions** sequence number on the clerk’s register for **CGC-25-631801**, plaintiff incorporates by reference the following **categories** of already-filed materials (insert ROA number in brackets):

| Category                               | Description                                                                                                                                             | ROA seq. |
|----------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| Opposition                             | Plaintiff’s opposition to the special motion to strike the First Amended Complaint                                                                      | TBD      |
| RFJN(s)                                | Plaintiff’s request(s) for judicial notice filed with or in support of that opposition                                                                  | TBD      |
| Exhibits / compendium                  | Plaintiff’s exhibit binders, compendia, or lodged transcript excerpts filed with the opposition                                                         | TBD      |
| Bench briefs                           | Any bench brief or supplemental memoranda the Court’s minutes reference as filed (verify authorization rulings separately in the Memorandum)            | TBD      |
| Contest / reconsideration shell        | Plaintiff’s May 11, 2026 combined contest and contingent reconsideration papers, if on file                                                             | TBD      |
| Second supplemental RJN / preservation | Plaintiff’s May 11, 2026 second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20), if on file | TBD      |
| RJN governing law / reliance chain     | Plaintiff’s May 11, 2026 request for judicial notice of governing law and related packet PDFs (May 12 package folder 21), if on file                    | TBD      |

The detailed incorporation table in the **Memorandum of Points and Authorities** may repeat this list with ROA numbers once confirmed.

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### III. EVIDENCE CODE SECTION 452, SUBDIVISION (D) — CGC-21-594102 RECORDS (NON-EXCLUSIVE LIST)

Plaintiff requests notice of the **court's own records** in **CGC-21-594102**, including without limitation:

1. **Motion in Limine No. 6**, filed **January 17, 2025**, and related register entries (the First Amended Complaint references Clerk's Transcript, Volume 1, pages 149–151 for excerpts).
  2. **Motion in Limine No. 17**, filed **January 17, 2025**, and related register entries (the First Amended Complaint references Clerk's Transcript, Volume 1, page 238 for excerpts).
  3. **February 18, 2025** hearing records, including the **hearing transcript** pages and lines cited in the First Amended Complaint, Section III.D (for example, the page and line cited for the colloquy referenced there).
  4. **April 16, 2025** trial records, including **trial transcript, Day 7**, lines cited in the First Amended Complaint, Section III.D (for example, lines referenced for exclusion of supplemental material and deferred 911 admission).
  5. **April 17, 2025** trial records, including **trial transcript, Day 8**, line cited in the First Amended Complaint, Section III.B (authentication colloquy).
  6. **April 25, 2025** trial records, including **trial transcript, Day 11**, line cited in the First Amended Complaint, Section III.E (verdict vote).
  7. **Clerk's Transcript** volume and page cited in the First Amended Complaint for entry of judgment (Section III.E).
  8. **May 11, 2026 second supplemental RFJN and appellate preservation** materials filed in **CGC-25-631801** (May 12 package folder **20**), including any register entries for that filing.
  9. **May 11, 2026 RJN of governing law** and related combined packet PDFs filed in **CGC-25-631801** (May 12 package folder **21**), including any register entries for that filing.
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## IV. EXHIBIT A — CHRONOLOGICAL DEFENSE SEQUENCE INDEX (DESCRIPTIVE ONLY)

Each row ties a **date** and **instrument or transcript** to a **First Amended Complaint** pointer. Wording follows the complaint’s structure (three “LEG” components in Section III.D). This table does **not** add factual allegations beyond those pointers.

| Row | Date (as pleaded or filed)                 | Instrument, transcript, or event (neutral title)                                                                               | FAC pointer (section / subsection)                      | Leg |
|-----|--------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------|-----|
| A1  | On or before Sept. 2022 (approx., per FAC) | Service or transfer of incident recordings and related materials in discovery (described in FAC as part of production history) | FAC III.D (LEG 1 opening); FAC III.C                    | 1   |
| A2  | Jan. 17, 2025                              | Defendant’s Motion in Limine No. 6 filed in CGC-21-594102                                                                      | FAC III.D (LEG 2; “False Representation in MIL No. 6”)  | 2   |
| A3  | Jan. 17, 2025                              | Defendant’s Motion in Limine No. 17 filed in CGC-21-594102                                                                     | FAC III.D (LEG 2; “False Representation in MIL No. 17”) | 2   |
| A4  | Feb. 18, 2025                              | Pretrial hearing before the Hon. Garrett L. Wong; colloquy described in FAC (including lines cited)                            | FAC III.D (LEG 2; “False Statement #1”)                 | 2   |
| A5  | Apr. 16, 2025                              | Trial statements described in FAC (supplemental report / subpoena representation)                                              | FAC III.D (LEG 2; “False Statement #2”)                 | 2   |
| A6  | Apr. 16, 2025                              | Trial statements described in FAC (uncertainty about 911 recording)                                                            | FAC III.D (LEG 2; “False Statement #3”)                 | 2   |
| A7  | Apr. 16, 2025                              | Ruling on supplemental report (trial transcript lines cited in FAC)                                                            | FAC III.D (LEG 3; “Ruling #1”)                          | 3   |
| A8  | Feb. 18, 2025                              | Court response described in FAC after defense statements (page and line cited)                                                 | FAC III.D (LEG 3; “Ruling #2”)                          | 3   |
| A9  | Feb.–Apr. 2025 (as pleaded)                | Continuance denials and verification posture described in FAC                                                                  | FAC III.D (LEG 3; “Ruling #3”)                          | 3   |
| A10 | Apr. 16, 2025                              | Deferred admission ruling for 911 call (trial transcript lines cited in FAC)                                                   | FAC III.D (LEG 3; “Ruling #4”)                          | 3   |
| A11 | Apr. 25, 2025                              | Jury verdict and vote described in FAC                                                                                         | FAC III.E                                               | —   |

| Row | Date          | Instrument / event                                                                                                              | FAC pointer                               | Leg |
|-----|---------------|---------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------|-----|
| A12 | Apr. 25, 2025 | Judgment entered (Clerk's Transcript cite in FAC)                                                                               | FAC III.E                                 | —   |
| A13 | May 11, 2026  | Plaintiff's combined motion for reconsideration, Exhibit T, and separator PDFs (47-page combined upload per May 12 render list) | Memorandum VII; Exhibit index row L       | —   |
| A14 | May 11, 2026  | Bench brief on gateway sequencing and plaintiff's exhibits packet PDF (May 12 package folder 17)                                | Memorandum VII (item 17)                  | —   |
| A15 | May 11, 2026  | Second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20)              | Memorandum II label E; RFJN incorporation | —   |
| A16 | May 11, 2026  | Request for judicial notice of governing law and reliance-effect packet PDFs (May 12 package folder 21)                         | Memorandum II label F; RFJN incorporation | —   |

## V. RESERVATION

Plaintiff reserves the right to supplement this request after obtaining **endorsed** register printouts and to lodge additional certified excerpts consistent with court rules.

**Dated:** May 13, 2026

**FRANCISCUS DYLAN ROSARIO**

Plaintiff, In Pro Per

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Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

Dated: May 13, 2026

A handwritten signature in blue ink, appearing to read "Francisco", with a small circle at the end of the stroke.

FRANCISCUS DYLAN ROSARIO  
Plaintiff, In Pro Per

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# DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this record request for judicial notice.

| # | Authority         | Specific requirement                                                      | This filing's compliance                     | Evidence |
|---|-------------------|---------------------------------------------------------------------------|----------------------------------------------|----------|
| 1 | Evid. Code 452(d) | Court records: existence and content, not truth of every assertion inside | Section III list; Exhibit A descriptive rows | III, IV  |
| 2 | CRC 3.1113(j)     | Incorporation categories with ROA placeholders                            | Section II longtable                         | II       |
| 3 | CRC 3.1113        | Non-argumentative Exhibit A index                                         | Exhibit A Exhibit A rows A1–A16              | IV       |